

The Punjab Good Conduct Prisoners (Temporary Release) Amendment Act, 1978

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The Punjab Good Conduct Prisoners (Temporary Release) Amendment Act, 1978

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The Punjab Good Conduct Prisoners (Temporary Release) Amendment Act, 1978

Act 30 of 1978

Published on 8 April 1999

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The Punjab Good Conduct Prisoners (Temporary Release) Amendment Act, 1978

(Punjab Act

No. 30 of 1978

)

[Dated 8.4.1999]

G.S.R. 248 (E). - In exercise of the powers conferred by section 87 of the Punjab Re-organisation Act, 1966 (31 of 1966), the Central Government hereby extends to the Union Territory of Chandigarh, the Punjab Good Conduct Prisoners (Temporary Release) Amendment Act, 1978 (Punjab Act

No. 30 of 1978

) as at present in force in the State of Punjab subject to the following modifications, namely :-

Modifications

1.

In section 1, for sub-section (2), the following sub-section shall be substituted, namely :-

"(2) It shall come into force at once."

2.

In section 2,-

(i)

for the words, "In the Punjab Good Conduct Prisoners (Temporary Release) Act, 1962", the words and figures "In the Punjab Good Conduct Prisoners (Temporary Release) Act, 1962 as in force in the Union Territory of Chandigarh" shall be substituted.

(ii)

for the words "State Government", the words "Administrator" shall be substituted and there shall also be made in any sentence in which these words occur, such consequential amendments as the rules of grammar may require; and

(iii)

for the word "State" wherever it occurs, the words "Union Territory of Chandigarh" shall be substituted.

3.

Section 3 shall be omitted.

Annexure

The Punjab Good Conduct Prisoners (Temporary Release) Amendment Act, 1978 (Punjab Act No. 30 of 1978

) as extended to the Union Territory of Chandigarh.

An Act to amend the Punjab Good Conduct Prisoners (Temporary Release) Act, 1962.

Be it enacted by the Legislature of the State of Punjab in the Twenty-ninth Year of the Republic of India as follows:-

1. Short title and commencement.

(1)

This Act may be called the Punjab Good Conduct Prisoners (Temporary Release) Amendment Act, 1978.

(2)

It shall come into force at once.

2. Substitution of section 6 of Punjab Act No. 11 of 1962.

- In the Punjab Good Conduct Prisoners (Temporary Release) Act, 1962 as in force in the Union Territory of Chandigarh for section 6, the following section shall be substituted namely :-

"6. Cases where consultations with District Magistrate not necessary or where prisoners are not to be released : Notwithstanding anything contained in sections 3 and 4,-

(i)

it shall not be necessary to consult the District Magistrate where the Administrator is satisfied that the prisoner maintained good conduct during the period of his earlier release under any of the aforesaid sections; and

(ii)

no prisoner shall be entitled to be released under this Act, if on the report of the District Magistrate, where consultation with him is necessary, the Administrator or an officer authorised by him in this behalf is satisfied that his release is likely to endanger the security of the Union Territory of Chandigarh or maintenance of public order".

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